

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

4. JILL CURTIS V. FRANCIS CURTIS

24FL0704

On March 11, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders as well as child and spousal support. He filed his Income and Expense Declaration and a Memorandum of Points and Authorities concurrently therewith. All required documents were served on March 13th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 10, 2026 and were able to reach agreements on some issues. A report codifying those agreements was prepared and mailed to the parties the same day.

Petitioner filed and served her Responsive Declaration to Request for Order, her Income and Expense Declaration and her Declaration of Petitioner Jill Curtis on May 29th.

Respondent filed and served his reply declaration on June 4th.

Respondent is requesting joint legal custody, though he asks that he be awarded primary physical custody. He proposes the child have visits with Petitioner at the child's discretion. He further requests guideline child support and guideline spousal support back to the date of filing the Petition in accordance with his Exhibit A proposed Xspouse report. He also asks the court to order the parties to equally split any out-of-pocket medical costs for the minor pursuant to FL-192.

Petitioner asks the court to adopt the agreements in the CCRC report. She further asks the court to deny Respondent's requests for retroactive child and spousal support. She does not oppose guideline child support orders but she asks that Respondent be ordered to provide documentation detailing his business expenses for the year 2024 and 2025.

After reviewing the filings as outlined above, the court does find the agreements contained in the April 10, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court.

The court is adopting the Xspouse report attached as Exhibit A to the RFO. Utilizing the same figures as outlined therein, the court finds that child support is \$1,497 per month and spousal support per the Alameda formula is \$293 per month. Petitioner is ordered to pay Respondent a total of \$1,789 per month as and for child support and temporary spousal support, payable on the 15th of each month until further order of the court or legal termination.

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The order of support is effective as of March 15, 2026. Respondent requests support back to the filing of the Petition or, alternatively, to the filing of the Response to the Petition. However, Respondent has made no showing that Petitioner was on notice of Respondent's request for support during that time. In fact, the Response filed on September 29, 2025 simply asks the court to reserve on support. Furthermore, the Response puts the parties on notice that child support will be ordered upon request and the filing of the proper financial forms by the requesting party. Even then, Respondent waited an additional six months before making such a request. So, while the court concedes it has legal authority to award support back to the filing of the Petition, the court sees no grounds to do so here.

The court finds the above order results in arrears in the amount of \$5,367 through and including May 15, 2026. The court orders Petitioner to pay Respondent \$178.90 on the 1st of each month commencing on July 1, 2026 and continuing until paid in full (approximately 30 months). If any payment is late or missed the entire remaining balance shall become immediately due in full, with legal interest, within five (5) days.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the minor. The parties are ordered to follow the procedures set forth in the attached FL-192.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT DOES FIND THE AGREEMENTS CONTAINED IN THE APRIL 10, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

THE COURT IS ADOPTING THE XSPOUSE REPORT ATTACHED AS EXHIBIT A TO THE RFO. UTILIZING THE SAME FIGURES AS OUTLINED THEREIN, THE COURT FINDS THAT CHILD SUPPORT IS \$1,497 PER MONTH AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$293 PER MONTH. PETITIONER IS ORDERED TO PAY RESPONDENT A TOTAL OF \$1,789 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 15TH OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THE ORDER OF SUPPORT IS EFFECTIVE AS OF MARCH 15, 2026.

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THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$5,367 THROUGH AND INCLUDING MAY 15, 2026. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$178.90 ON THE 1ST OF EACH MONTH COMMENCING ON JULY 1, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 30 MONTHS). IF ANY PAYMENT IS LATE OR MISSED THE ENTIRE REMAINING BALANCE SHALL BECOME IMMEDIATELY DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE MINOR. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES AS SET FORTH IN THE ATTACHED FL-192.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the [family law facilitator](#) in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. **Remember:** You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* or
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* or
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form. The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees and*
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing and*
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the [family law facilitator](#) in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see [Family Code section 4007.5](#) or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>.

You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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5. MICKEY VINCENT DE MARTINI V. JESSICA RENEE ISABEL ELIJAH KANE THOMAS

26FL0003

On January 2, 2026, Petitioner filed a Request for Order (RFO) seeking to establish paternity, set aside the Voluntary Declaration of Paternity (VDOP), birth certificate amendment, and visitation orders. Concurrently therewith he filed a Request for Hearing and Application to Cancel (Set Aside) Voluntary Declaration of Parentage or Paternity. All required documents were personally served on February 23rd.

On March 6th, Respondent filed an RFO seeking to quash the request to set aside the VDOP and for sanctions. She filed a Memorandum of Points and Authorities in support of her RFO. Both documents were served on March 10th.

Respondent filed and served a Request for Judicial Notice on March 27th, though she is listed as the Petitioner on the pleading.

Petitioner filed his Responsive Declaration to Request for Order on May 29th. It was served on May 28th. He filed a supplemental declaration in support of his RFO on June 1st. Respondent objects to the supplemental declaration as untimely. The objection is sustained and the court has not read or considered the supplemental declaration.

Petitioner is requesting the following orders: (1) Establish his parentage of the child Shiloh by way of DNA testing; (2) Set aside the VDOP signed by Elijah Kane Thomas; (3) Add Petitioner to the minor's birth certificate; (4) Establish a parenting plan through a referral to Child Custody Recommending Counseling (CCRC); (5) Change the minor's name to "Shiloh Daniel De Martini;" and (6) Toll the statute of limitations due to Petitioner's incarceration.

Respondent opposes the requests and asks the court to quash the RFO seeking to set aside the VDOP as it was filed outside of the two year statute of limitations and there is no basis for the court to exercise its discretion to toll the statute of limitations. She asks that the court take judicial notice of documents attached as exhibits 1 – 7 to the Request for Judicial Notice each of which is found as part of the El Dorado County Superior Court Case # 21CR0364. Finally, she requests sanctions pursuant to Family Code § 271.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including

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“[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

Section 452 provides that the court “may” take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court “shall” take judicial notice of any matter “specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” Cal. Evid. Code § 453.

Here, Respondent has given all parties sufficient notice of her requests and provided copies of the documents she is referencing. As such, the court finds that she has satisfied the requirements of Evidence Code § 453 and therefore the request for judicial notice is granted.

Pursuant to Family Code § 7577, any action to set aside a VDOP “...shall be filed not later than two years after the effective date of the declaration.” Fam. Code § 7577(d). Here, the VDOP in question was signed on November 25, 2022. The request to set aside the VDOP was not filed until more than three years later on January 2, 2026. Therefore, the request to set aside the VDOP is denied as untimely.

Because the request to set aside the VDOP is denied, so too are the remaining requests in Petitioner’s RFO.

The request for Section 271 sanctions is denied as the court does not find that Petitioner’s requests frustrated the policy of the law to encourage cooperation and reduce the cost of litigation.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: RESPONDENT’S OBJECTION TO THE JUNE 1, 2026 SUPPLEMENTAL DECLARATION IS SUSTAINED. THE SUPPLEMENTAL DECLARATION HAS NOT BEEN READ OR CONSIDERED.

RESPONDENT’S REQUEST FOR JUDICIAL NOTICE OF EXHIBITS 1-7 IS GRANTED.

THE REQUEST TO SET ASIDE THE VDOP IS DENIED AS UNTIMELY.